

GDPR compliance report

Generated: 2026-05-01 16:14:30

Halted (P1): False

Overall score: 7%

Critical / Warning / Info: 33 / 8 / 0

Documents

- ../data/sample/4.xml

Chapter scores

Chapter	Score
Ch.2 – Principles	13%
Ch.3 – Rights of data subjects	7%
Ch.4 – Controller & processor	8%
Ch.5 – Transfers to third countries	0%
Ch.8 – Remedies, liability & penalties	0%
Ch.9 – Specific processing situations	0%

Top urgent gaps

- Art. 5 (Principles relating to processing): Accuracy: The policy does not explicitly state how the accuracy of personal data will be ensured or how data subjects can request corrections.
- Art. 6 (Lawfulness of processing): No lawful basis for processing has been identified in the provided policy excerpts.
- Art. 7 (Conditions for consent): The policy does not explicitly state that consent must be 'freely given', 'specific', 'informed', or 'unambiguous'.

Scorecard

Art.	Chapter	Title	P	Score	Severity	Status
5	Ch.2 – Principles	Principles relating to processing	p2	36	warning	partial
6	Ch.2 – Principles	Lawfulness of processing	p2	0	critical	fail
7	Ch.2 – Principles	Conditions for consent	p2	0	critical	fail
8	Ch.2 – Principles	Child's consent	p3	0	critical	missing
9	Ch.2 – Principles	Special category data	p2	0	critical	fail
10	Ch.2 – Principles	Criminal convictions data	p3	0	critical	missing
11	Ch.2 – Principles	Processing without identification	p2	52	warning	partial
12	Ch.3 – Rights of data su	Transparency & modalities	p2	0	critical	fail
13	Ch.3 – Rights of data su	Info collected from data subject	p2	12	warning	partial
14	Ch.3 – Rights of data su	Info not obtained from data subject	p2	20	warning	partial
15	Ch.3 – Rights of data su	Right of access	p2	0	critical	fail
16	Ch.3 – Rights of data su	Right to rectification	p2	0	critical	fail
17	Ch.3 – Rights of data su	Right to erasure	p2	0	critical	fail
18	Ch.3 – Rights of data su	Right to restriction	p2	0	critical	fail
19	Ch.3 – Rights of data su	Notification on rectification/erasure	p3	0	critical	missing
20	Ch.3 – Rights of data su	Right to data portability	p2	0	critical	fail
21	Ch.3 – Rights of data su	Right to object	p2	44	warning	partial
22	Ch.3 – Rights of data su	Automated decision-making	p2	0	critical	fail
24	Ch.4 – Controller & proc	Responsibility of the controller	p2	52	warning	partial
25	Ch.4 – Controller & proc	Privacy by design and default	p3	0	critical	missing
26	Ch.4 – Controller & proc	Joint controllers	p3	70	warning	present (unverified)
27	Ch.4 – Controller & proc	Representatives (non-EU)	p3	0	critical	missing
28	Ch.4 – Controller & proc	Processor / DPA	p2	0	critical	fail
29	Ch.4 – Controller & proc	Processing under authority	p2	0	critical	fail
30	Ch.4 – Controller & proc	Records of processing (ROPA)	p2	0	critical	fail
32	Ch.4 – Controller & proc	Security of processing	p3	0	critical	missing
33	Ch.4 – Controller & proc	Breach notification to SA	p3	0	critical	missing
34	Ch.4 – Controller & proc	Breach communication to data subject	p3	0	critical	missing
35	Ch.4 – Controller & proc	DPIA	p3	0	critical	missing
37	Ch.4 – Controller & proc	DPO designation	p2	0	critical	fail
38	Ch.4 – Controller & proc	DPO position	p3	0	critical	missing
39	Ch.4 – Controller & proc	DPO tasks	p2	0	critical	fail
40	Ch.4 – Controller & proc	Codes of conduct	p3	0	critical	missing
42	Ch.4 – Controller & proc	Certification	p3	0	critical	missing
44	Ch.5 – Transfers to thir	General principle for transfers	p2	0	critical	fail
45	Ch.5 – Transfers to thir	Adequacy decision transfers	p2	0	critical	fail
46	Ch.5 – Transfers to thir	Transfers with safeguards	p3	0	critical	missing
47	Ch.5 – Transfers to thir	Binding corporate rules	p3	0	critical	missing
77	Ch.8 – Remedies, liabili	Right to lodge a complaint	p2	0	critical	fail
87	Ch.9 – Specific process	National identification number	p4	—	warning	triggered (HIL)
88	Ch.9 – Specific process	Employment context	p2	0	critical	fail

Scope (Art.2/3) + pipeline summary (raw JSON)

```

{
  "scope": {
    "applies": "yes",
    "reasons": [
      "The company's platform (website and mobile app) is accessible in the Union, and the policy mentions processing personal data of users.",
      "The company's activities involve offering goods/services to data subjects in the Union.",
      "The company's activities involve monitoring user behavior within the Union."
    ],
    "evidence": [
      "This Privacy Policy describes how Flipkart Internet Private Limited and its affiliates (collectively "Flipkart, we, our, us") collect, use, share or otherwise process your personal information through Flipkart website www.flipkart.com , its mobile application, and m-site (hereinafter referred to as the "Platform").",
      "By visiting the Platform, providing your information or availing our product/service, you expressly agree to be bound by the terms and conditions of this Privacy Policy, the Terms of Use and the applicable service/product terms and conditions.",
      "This Regulation applies to the processing of personal data of data subjects who are in the Union by a controller or processor not established in the Union, where the processing activities are related to: - the offering of goods or services, irrespective of whether a payment of the data subject is required, to such data subjects in the Union; or - the monitoring of their behaviour as far as their behaviour takes place within the Union."
    ],
    "hil_required": false
  },
  "pipeline_summary": {
    "overall_score_pct": 12,
    "p2_score": 0.12,
    "p2_findings_total": 25,
    "p3_findings_total": 15,
    "p4_triggered_total": 1,
    "p4_articles_not_triggered": 5,
    "findings_total": 41,
    "hil_queue_total": 16
  },
  "computed_scoring": {
    "overall_score_pct": 7,
    "chapter_scores": {
      "Ch.2 - Principles": 13,
      "Ch.3 - Rights of data subjects": 7,
      "Ch.4 - Controller & processor": 8,
      "Ch.5 - Transfers to third countries": 0,
      "Ch.8 - Remedies, liability & penalties": 0,
      "Ch.9 - Specific processing situations": 0
    },
    "severity_counts": {
      "critical": 33,
      "warning": 8,
      "info": 0
    }
  }
}

```

Appendix — finding detail

Art. 5 — Principles relating to processing

Priority: p2 Chapter: Ch.2 – Principles

Severity: warning Status: partial

Score: 36/100

Risk: medium

Gaps

- Accuracy: The policy does not explicitly state how the accuracy of personal data will be ensured or how data subjects can request corrections.
- Storage Limitation: While the policy mentions retaining information as necessary, it lacks specific details on data retention periods or criteria for deletion.
- Accountability: The policy does not detail the accountability mechanisms for ensuring compliance with data protection principles, such as appointing a data protection officer or conducting data protection impact assessments.

Evidence

- {'policy_chunk_id': 'c0', 'line_start': 0, 'line_end': 1200}
- {'policy_chunk_id': 'c1', 'line_start': 1000, 'line_end': 2200}
- {'policy_chunk_id': 'c2', 'line_start': 2000, 'line_end': 3200}
- {'policy_chunk_id': 'c3', 'line_start': 3000, 'line_end': 4200}
- {'policy_chunk_id': 'c4', 'line_start': 4000, 'line_end': 5200}

Notes

The policy addresses lawfulness, fairness, transparency, purpose limitation, and data minimization to some extent by informing users about data collection and usage. However, explicit mention of ensuring data accuracy, defining storage limitation periods, and detailing accountability measures are missing, leading to a partial status.

```
{
  "article_number": 5,
  "article_title": "Principles relating to processing",
  "chapter": "Ch.2 – Principles",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "Accuracy: The policy does not explicitly state how the accuracy of personal data will be ensured or how data subjects can request corrections.",
    "Storage Limitation: While the policy mentions retaining information as necessary, it lacks specific details on data retention periods or criteria for deletion.",
    "Accountability: The policy does not detail the accountability mechanisms for ensuring compliance with data protection principles, such as appointing a data protection officer or conducting data protection impact assessments."
  ],
  "evidence": [
    {
      "policy_chunk_id": "c0",
      "line_start": 0,
      "line_end": 1200
    },
    {
      "policy_chunk_id": "c1",
      "line_start": 1000,
      "line_end": 2200
    },
    {
      "policy_chunk_id": "c2",
      "line_start": 2000,
      "line_end": 3200
    },
    {
      "policy_chunk_id": "c3",
      "line_start": 3000,
      "line_end": 4200
    },
    {
      "policy_chunk_id": "c4",
      "line_start": 4000,
      "line_end": 5200
    }
  ]
}
```

```

    "line_end": 5200
  }
],
"risk": "medium",
"needs_human_review": false,
"notes": "The policy addresses lawfulness, fairness, transparency, purpose limitation, and data minimization to some extent by informing users about data collection and usage. However, explicit mention of ensuring data accuracy, defining storage limitation periods, and detailing accountability measures are missing, leading to a partial status.",
"article_material_used": "text"
}

```

Art. 6 — Lawfulness of processing

Priority: p2 Chapter: Ch.2 – Principles

Severity: critical Status: fail

Score: 0/100

Risk: critical

Gaps

- No lawful basis for processing has been identified in the provided policy excerpts.

Notes

The policy excerpts do not state any of the lawful bases for processing personal data as required by Article 6 of the GDPR. This is a critical gap as all processing must have a legal ground.

```

{
  "article_number": 6,
  "article_title": "Lawfulness of processing",
  "chapter": "Ch.2 – Principles",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "No lawful basis for processing has been identified in the provided policy excerpts."
  ],
  "evidence": [],
  "risk": "critical",
  "needs_human_review": false,
  "notes": "The policy excerpts do not state any of the lawful bases for processing personal data as required by Article 6 of the GDPR. This is a critical gap as all processing must have a legal ground.",
  "article_material_used": "summary"
}

```

Art. 7 — Conditions for consent

Priority: p2 Chapter: Ch.2 – Principles

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly state that consent must be 'freely given', 'specific', 'informed', or 'unambiguous'.
- There is no mention of a mechanism for withdrawing consent.

Evidence

- The policy states: 'By visiting the Platform, providing your information or availing our product/service, you expressly agree to be bound by the terms and conditions of this Privacy Policy, the Terms of Use and the applicable service/product terms and conditions. If you do not agree, please do not access or use our Platform.' This implies consent but does not detail the specific requirements of Article 7.
- The policy mentions 'you always have the option to not provide information by choosing not to use a particular service, product or feature on the Platform.' This relates to choice but not explicitly 'freely given' consent.
- The policy states: 'To the extent we use your personal information to market to you, we will provide you the ability to opt-out of such uses.' This describes an opt-out mechanism for marketing, not a general consent withdrawal mechanism.

Notes

While the policy implies consent is sought for data processing, it does not explicitly detail the conditions for valid consent as required by Article 7 of the GDPR, specifically regarding the 'freely given', 'specific', 'informed', and

'unambiguous' nature of consent. Furthermore, there is no clear process outlined for the withdrawal of consent.

```
{
  "article_number": 7,
  "article_title": "Conditions for consent",
  "chapter": "Ch.2 – Principles",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly state that consent must be 'freely given', 'specific', 'informed', or 'unambiguous'.",
    "There is no mention of a mechanism for withdrawing consent."
  ],
  "evidence": [
    "The policy states: 'By visiting the Platform, providing your information or availing our product/service, you expressly agree to be bound by the terms and conditions of this Privacy Policy, the Terms of Use and the applicable service/product terms and conditions. If you do not agree, please do not access or use our Platform.' This implies consent but does not detail the specific requirements of Article 7.",
    "The policy mentions 'you always have the option to not provide information by choosing not to use a particular service, product or feature on the Platform.' This relates to choice but not explicitly 'freely given' consent.",
    "The policy states: 'To the extent we use your personal information to market to you, we will provide you the ability to opt-out of such uses.' This describes an opt-out mechanism for marketing, not a general consent withdrawal mechanism."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "While the policy implies consent is sought for data processing, it does not explicitly detail the conditions for valid consent as required by Article 7 of the GDPR, specifically regarding the 'freely given', 'specific', 'informed', and 'unambiguous' nature of consent. Furthermore, there is no clear process outlined for the withdrawal of consent.",
  "article_material_used": "text"
}
```

Art. 8 — Child's consent

Priority: p3 Chapter: Ch.2 – Principles

Severity: critical Status: missing

Score: 0/100

Notes

The policy does not mention or address child consent or parental consent. It also does not mention any age verification mechanisms.

```
{
  "article_number": 8,
  "article_title": "Child's consent",
  "chapter": "Ch.2 – Principles",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The policy does not mention or address child consent or parental consent. It also does not mention any age verification mechanisms.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 9 — Special category data

Priority: p2 Chapter: Ch.2 – Principles

Severity: critical Status: fail

Score: 0/100

Risk: critical

Gaps

- The policy does not explicitly state whether special category data is processed.
- There is no mention of obtaining explicit consent for processing special category data.
- No derogations under Article 9(2) for processing special category data are specified.

Evidence

- The provided policy text focuses on definitions relevant to GDPR but does not detail the processing of special category data.
- Keywords related to special category data (health, biometric, racial, religious) are not addressed in the policy content.
- The policy does not include statements about explicit consent or specific derogations required by Article 9.

Notes

Article 9 of GDPR prohibits the processing of special category personal data unless specific conditions are met, primarily requiring explicit consent. The absence of any information regarding the processing of such data, or the safeguards in place if it is processed, represents a critical risk. The policy must address how special category data is handled, if at all, and detail the legal basis for its processing, including explicit consent or a valid derogation.

```
{
  "article_number": 9,
  "article_title": "Special category data",
  "chapter": "Ch.2 - Principles",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly state whether special category data is processed.",
    "There is no mention of obtaining explicit consent for processing special category data.",
    "No derogations under Article 9(2) for processing special category data are specified."
  ],
  "evidence": [
    "The provided policy text focuses on definitions relevant to GDPR but does not detail the processing of special category data.",
    "Keywords related to special category data (health, biometric, racial, religious) are not addressed in the policy content.",
    "The policy does not include statements about explicit consent or specific derogations required by Article 9."
  ],
  "risk": "critical",
  "needs_human_review": false,
  "notes": "Article 9 of GDPR prohibits the processing of special category personal data unless specific conditions are met, primarily requiring explicit consent. The absence of any information regarding the processing of such data, or the safeguards in place if it is processed, represents a critical risk. The policy must address how special category data is handled, if at all, and detail the legal basis for its processing, including explicit consent or a valid derogation.",
  "article_material_used": "summary"
}
```

Art. 10 — Criminal convictions data

Priority: p3 Chapter: Ch.2 – Principles

Severity: critical Status: missing

Score: 0/100

Notes

The provided text contains definitions related to GDPR but does not specifically address Article 10 concerning criminal convictions data.

```
{
  "article_number": 10,
  "article_title": "Criminal convictions data",
  "chapter": "Ch.2 - Principles",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text contains definitions related to GDPR but does not specifically address Article 10 concerning criminal convictions data.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 11 — Processing without identification

Priority: p2 Chapter: Ch.2 – Principles

Severity: warning Status: partial

Score: 52/100

Risk: medium

Gaps

- The provided text does not contain specific information about the agent's guidance to check anonymisation/pseudonymisation claims against data minimisation language. Therefore, a full assessment of Article 11 cannot be made based solely on the provided chunks.

Evidence

- The policy defines 'personal data' and 'pseudonymisation' according to GDPR Article 4. However, there is no specific policy content addressing the claims of anonymisation/pseudonymisation or how they relate to data minimisation as per Article 11 guidance.

Notes

The assessment is partial because the provided text defines key terms but lacks specific policy content related to Article 11's core requirements regarding processing without identification and the agent's guidance on anonymisation/pseudonymisation claims in relation to data minimisation.

```
{
  "article_number": 11,
  "article_title": "Processing without identification",
  "chapter": "Ch.2 - Principles",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The provided text does not contain specific information about the agent's guidance to check anonymisation/pseudonymisation claims against data minimisation language. Therefore, a full assessment of Article 11 cannot be made based solely on the provided chunks."
  ],
  "evidence": [
    "The policy defines 'personal data' and 'pseudonymisation' according to GDPR Article 4. However, there is no specific policy content addressing the claims of anonymisation/pseudonymisation or how they relate to data minimisation as per Article 11 guidance."
  ],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The assessment is partial because the provided text defines key terms but lacks specific policy content related to Article 11's core requirements regarding processing without identification and the agent's guidance on anonymisation/pseudonymisation claims in relation to data minimisation.",
  "article_material_used": "text"
}
```

Art. 12 — Transparency & modalities

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly mention a commitment to respond to data subject requests within one month.
- The policy does not explicitly state that information will be provided in plain language.
- The policy does not explicitly state that information will be provided via electronic means where appropriate.
- The policy does not explicitly state that information and communications concerning data subject rights will be provided free of charge.

Notes

The provided text defines terms used in GDPR but does not contain the operational details required by Article 12 regarding response times, clarity of language, communication methods, and cost.

```
{
  "article_number": 12,
  "article_title": "Transparency & modalities",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly mention a commitment to respond to data subject requests within one month.",
    "The policy does not explicitly state that information will be provided in plain language.",
    "The policy does not explicitly state that information will be provided via electronic means where appropriate.",
  ]
}
```

```

    "The policy does not explicitly state that information and communications concerning data
    subject rights will be provided free of charge."
  ],
  "evidence": [],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The provided text defines terms used in GDPR but does not contain the operational
  details required by Article 12 regarding response times, clarity of language, communication
  methods, and cost.",
  "article_material_used": "summary"
}

```

Art. 13 — Info collected from data subject

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: warning Status: partial

Score: 12/100

Risk: medium

Gaps

- The policy does not explicitly state the Controller's identity or provide direct contact information for them.
- The policy does not mention a Data Protection Officer (DPO) or provide contact details for one.
- While the policy discusses the use of data, it does not clearly articulate the legal basis for each processing activity.
- The policy does not specify the retention periods for different types of personal data.
- The policy mentions sharing data with third-party business partners and Ultra-Partners but does not provide a comprehensive list of recipients or categories of recipients.
- The policy provides a general overview of data subject rights but lacks a detailed summary of each right (e.g., right to access, rectification, erasure, restriction, objection, data portability) and how to exercise them.

Evidence

- Policy Chunk c0 states: 'Privacy Policy We value the trust you place in us and recognize the importance of secure transactions and information privacy. This Privacy Policy describes how Flipkart Internet Private Limited and its affiliates (collectively “Flipkart, we, our, us”) collect, use, share or otherwise process your personal information...'
- Policy Chunk c0 mentions: '...you expressly agree to be bound by the terms and conditions of this Privacy Policy...'
- Policy Chunk c1 states: 'When you use our Platform, we collect and store your information which is provided by you from time to time.'
- Policy Chunk c1 states: 'We collect personal information (such as email address, delivery address, name, phone number, credit card/debit card and other payment instrument details) from you when you set up an account or transact with us.'
- Policy Chunk c2 states: 'We do use your contact information to send you offers based on your previous orders and your interests.'
- Policy Chunk c2 states: 'If you choose to post messages on our message boards, chat rooms or other message areas or leave feedback or if you use voice commands to shop on the Platform, we will collect that information you provide to us.'
- Policy Chunk c2 states: 'We retain this information as necessary to resolve disputes, provide customer support and troubleshoot problems as permitted by law.'
- Policy Chunk c3 states: 'If you enrol into our SuperCoins Loyalty Program, we will collect and store your personal information such as name, contact number, email address, communication address, date of birth, gender, zip code, lifestyle information, demographic and work details which is provided by you to Flipkart or a third-party business partner...'

Notes

The policy provides some information required by Article 13, such as the identity of the entity collecting data (Flipkart Internet Private Limited), the types of data collected, and the purposes for which it is used. However, it is incomplete regarding the controller's direct contact, DPO, legal basis, retention periods, comprehensive recipient list, and a detailed summary of data subject rights. The document explicitly disclaims responsibility for third-party partners' privacy practices, which is a point of concern for data subject awareness.

{

```

"article_number": 13,
"article_title": "Info collected from data subject",
"chapter": "Ch.3 – Rights of data subjects",
"priority": "p2",
"status": "partial",
"gaps": [
  "The policy does not explicitly state the Controller's identity or provide direct contact information for them.",
  "The policy does not mention a Data Protection Officer (DPO) or provide contact details for one.",
  "While the policy discusses the use of data, it does not clearly articulate the legal basis for each processing activity.",
  "The policy does not specify the retention periods for different types of personal data.",
  "The policy mentions sharing data with third-party business partners and Ultra-Partners but does not provide a comprehensive list of recipients or categories of recipients.",
  "The policy provides a general overview of data subject rights but lacks a detailed summary of each right (e.g., right to access, rectification, erasure, restriction, objection, data portability) and how to exercise them."
],
"evidence": [
  "Policy Chunk c0 states: 'Privacy Policy We value the trust you place in us and recognize the importance of secure transactions and information privacy. This Privacy Policy describes how Flipkart Internet Private Limited and its affiliates (collectively 'Flipkart, we, our, us') collect, use, share or otherwise process your personal information...'",
  "Policy Chunk c0 mentions: '...you expressly agree to be bound by the terms and conditions of this Privacy Policy...'",
  "Policy Chunk c1 states: 'When you use our Platform, we collect and store your information which is provided by you from time to time.'",
  "Policy Chunk c1 states: 'We collect personal information (such as email address, delivery address, name, phone number, credit card/debit card and other payment instrument details) from you when you set up an account or transact with us.'",
  "Policy Chunk c2 states: 'We do use your contact information to send you offers based on your previous orders and your interests.'",
  "Policy Chunk c2 states: 'If you choose to post messages on our message boards, chat rooms or other message areas or leave feedback or if you use voice commands to shop on the Platform, we will collect that information you provide to us.'",
  "Policy Chunk c2 states: 'We retain this information as necessary to resolve disputes, provide customer support and troubleshoot problems as permitted by law.'",
  "Policy Chunk c3 states: 'If you enrol into our SuperCoins Loyalty Program, we will collect and store your personal information such as name, contact number, email address, communication address, date of birth, gender, zip code, lifestyle information, demographic and work details which is provided by you to Flipkart or a third-party business partner...'",
  "Policy Chunk c3 states: 'When such third-party business partner collects your personal information directly from you, you will be governed by their privacy policies. Flipkart shall not be responsible for the third-party business partner's privacy practices or the content of their privacy policies, and we request you to read their privacy policies prior to disclosing any information.'",
  "Policy Chunk c4 states: 'Flipkart has onboarded certain third-party business partners on the Platform who specialise in the categories like travel ticket reservations, booking online movie tickets, paying online bills and more (Ultra-Partners). If you use the services of Ultra-Partners, you will be redirected to Ultra-Partners websites/applications and your entry to Ultra-Partners websites/applications will be based on your Flipkart login credentials after seeking your permissions to share the data further.'",
  "Policy Chunk c4 states: 'Flipkart shall not be responsible for the Ultra-Partner's privacy practices or the content of their privacy policies, and we request you to read their privacy policies prior to disclosing any information.'",
  "Policy Chunk c4 states: 'We use your personal information to provide the product and services you request. To the extent we use your personal information to market to you, we will provide you the ability to opt-out of such uses.'",
  "Policy Chunk c4 states: 'We use your personal information to assist sellers and business partners in handling and fulfilling orders; enhancing customer experience; resolve disputes; tr'"
],
"risk": "medium",
"needs_human_review": false,
"notes": "The policy provides
... (truncated)

```

Art. 14 — Info not obtained from data subject

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects
Severity: warning **Status:** partial
Score: 20/100
Risk: medium
Gaps:

- The policy does not explicitly state what information is obtained from third parties, nor does it specify the source of such information beyond general mentions of 'third-party business partners' and 'Ultra-Partners'.

- There is no clear indication of the purposes for which personal data is obtained from third parties, beyond the context of loyalty programs and specialized services.
- The policy lacks specific details regarding the categories of personal data collected from third parties and whether this data is necessary for the stated purposes.
- Information about the retention period of data obtained from third parties is not provided.
- The policy does not detail whether data obtained from third parties is subject to automated decision-making, including profiling, nor does it offer safeguards in such scenarios.

Evidence

- c3: "If you enrol into our SuperCoins Loyalty Program, we will collect and store your personal information such as name, contact number, email address, communication address, date of birth, gender, zip code, lifestyle information, demographic and work details which is provided by you to Flipkart or a third-party business partner that operates online/offline establishments or platforms where you can earn SuperCoins for purchase of goods and services, and redeem SuperCoins. We will also collect your information related to your transactions on Flipkart platform and such third-party business partner platforms. When such third-party business partner collects your personal information directly from you, you will be governed by their privacy policies. Flipkart shall not be responsible for the third-party business partner's privacy practices or the content of their privacy policies, and we request you to read their privacy policies prior to disclosing any information."
- c4: "Flipkart has onboarded certain third-party business partners on the Platform who specialise in the categories like travel ticket reservations, booking online movie tickets, paying online bills and more (Ultra-Partners). If you use the services of Ultra-Partners, you will be redirected to Ultra-Partners websites/applications and your entry to Ultra-Partners websites/applications will be based on your Flipkart login credentials after seeking your permissions to share the data further. Flipkart shall not be responsible for the Ultra-Partner's privacy practices or the content of their privacy policies, and we request you to read their privacy policies prior to disclosing any information."

Notes

Article 14 requires controllers to provide specific information to data subjects when personal data is not obtained directly from them. While the policy mentions interactions with third-party business partners and 'Ultra-Partners', it does not fully detail the information provided to users about data obtained from these sources. Specifically, the source of the data, the purpose of processing, and the retention period for data obtained indirectly are not clearly articulated, leading to partial compliance.

```
{
  "article_number": 14,
  "article_title": "Info not obtained from data subject",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state what information is obtained from third parties, nor does it specify the source of such information beyond general mentions of 'third-party business partners' and 'Ultra-Partners'.",
    "There is no clear indication of the purposes for which personal data is obtained from third parties, beyond the context of loyalty programs and specialized services.",
    "The policy lacks specific details regarding the categories of personal data collected from third parties and whether this data is necessary for the stated purposes.",
    "Information about the retention period of data obtained from third parties is not provided.",
    "The policy does not detail whether data obtained from third parties is subject to automated decision-making, including profiling, nor does it offer safeguards in such scenarios."
  ],
  "evidence": [
    "c3: \"If you enrol into our SuperCoins Loyalty Program, we will collect and store your personal information such as name, contact number, email address, communication address, date of birth, gender, zip code, lifestyle information, demographic and work details which is provided by you to Flipkart or a third-party business partner that operates online/offline establishments or platforms where you can earn SuperCoins for purchase of goods and services, and redeem SuperCoins. We will also collect your information related to your transactions on Flipkart platform and such third-party business partner platforms. When such third-party business partner collects your personal information directly from you, you will be governed by their privacy policies. Flipkart shall not be responsible for the third-party business partner's privacy practices or the content of their privacy policies, and we request you to read their privacy policies prior to disclosing any information.\"",
    "c4: \"Flipkart has onboarded certain third-party business partners on the Platform who specialise in the categories like travel ticket reservations, booking online movie tickets, paying online bills and more (Ultra-Partners). If you use the services of Ultra-Partners, you will be redirected to Ultra-Partners websites/applications and your entry to Ultra-Partners websites/applications will be based on your Flipkart login credentials after seeking your"
```

permissions to share the data further. Flipkart shall not be responsible for the Ultra-Partner's privacy practices or the content of their privacy policies, and we request you to read their privacy policies prior to disclosing any information.\""

```
  ],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "Article 14 requires controllers to provide specific information to data subjects when personal data is not obtained directly from them. While the policy mentions interactions with third-party business partners and 'Ultra-Partners', it does not fully detail the information provided to users about data obtained from these sources. Specifically, the source of the data, the purpose of processing, and the retention period for data obtained indirectly are not clearly articulated, leading to partial compliance.",
  "article_material_used": "text"
}
```

Art. 15 — Right of access

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not describe the process for submitting a Subject Access Request (SAR).
- The policy does not specify the timeline for responding to SARs.
- The policy does not mention identity verification procedures for SARs.
- The policy does not clearly state what information will be provided in response to an SAR.

Evidence

- Policy chunks c7, c8, c9, c10, c11 discuss data collection, cookies, sharing of personal information, and security precautions.

- The provided text does not contain any information regarding the process, timeline, verification, or content of Subject Access Requests.

- Article 4 definitions do not provide procedural information for SARs.

Notes

The policy fails to outline the necessary procedures for individuals to exercise their right of access under GDPR Article 15. Key elements such as the submission process, response timeframe, identity verification, and the scope of information provided are missing. This lack of clarity and procedure poses a significant risk to compliance.

```
{
  "article_number": 15,
  "article_title": "Right of access",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not describe the process for submitting a Subject Access Request (SAR).",
    "The policy does not specify the timeline for responding to SARs.",
    "The policy does not mention identity verification procedures for SARs.",
    "The policy does not clearly state what information will be provided in response to an SAR."
  ],
  "evidence": [
    "Policy chunks c7, c8, c9, c10, c11 discuss data collection, cookies, sharing of personal information, and security precautions.",
    "The provided text does not contain any information regarding the process, timeline, verification, or content of Subject Access Requests.",
    "Article 4 definitions do not provide procedural information for SARs."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy fails to outline the necessary procedures for individuals to exercise their right of access under GDPR Article 15. Key elements such as the submission process, response timeframe, identity verification, and the scope of information provided are missing. This lack of clarity and procedure poses a significant risk to compliance.",
  "article_material_used": "summary"
}
```

Art. 16 — Right to rectification

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly describe the right to rectification for personal data inaccuracies or incompleteness, nor does it specify that such corrections will be made 'without undue delay' or equivalent.

Evidence

- None of the provided policy chunks (c7-c11) or the Article 4 definitions mention the right to rectification of personal data.
- The provided text focuses on data collection, cookies, sharing of personal information, links to other sites, and security precautions.

Notes

Article 16 of the GDPR guarantees the right to rectification. The provided policy text does not address this right, nor does it contain any clauses related to correcting inaccurate or incomplete personal data without undue delay. This is a significant gap.

```
{
  "article_number": 16,
  "article_title": "Right to rectification",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly describe the right to rectification for personal data inaccuracies or incompleteness, nor does it specify that such corrections will be made 'without undue delay' or equivalent."
  ],
  "evidence": [
    "None of the provided policy chunks (c7-c11) or the Article 4 definitions mention the right to rectification of personal data.",
    "The provided text focuses on data collection, cookies, sharing of personal information, links to other sites, and security precautions."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "Article 16 of the GDPR guarantees the right to rectification. The provided policy text does not address this right, nor does it contain any clauses related to correcting inaccurate or incomplete personal data without undue delay. This is a significant gap.",
  "article_material_used": "text"
}
```

Art. 17 — Right to erasure

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: critical

Gaps

- The provided policy chunks do not describe the process for handling deletion requests, grounds for refusal, or any retention exceptions as required by Article 17 of the GDPR.

Notes

The policy text provided does not contain any information related to the right to erasure (Article 17). Therefore, it is not possible to assess compliance with this article.

```
{
  "article_number": 17,
  "article_title": "Right to erasure",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The provided policy chunks do not describe the process for handling deletion requests, grounds for refusal, or any retention exceptions as required by Article 17 of the GDPR."
  ],
  "evidence": [],
  "risk": "critical",
  "needs_human_review": false,
  "notes": "The policy text provided does not contain any information related to the right to erasure (Article 17). Therefore, it is not possible to assess compliance with this article.",
  "article_material_used": "text"
}
```

}

Art. 18 — Right to restriction

Priority: p2 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly mention the right to restrict processing or a 'processing freeze/data hold' mechanism as required by GDPR Article 18. While it discusses data usage, sharing, and security, it does not detail how an individual can request their data processing be limited under specific circumstances.

Evidence

- The provided policy chunks (c7-c11) describe data collection, usage for personalization, cookies, sharing of personal information with third parties, and security measures. However, there is no mention of the right to restrict processing or a process for implementing such a restriction.

Notes

Article 18 of the GDPR outlines the right to restriction of processing. The policy lacks any information on how data subjects can exercise this right, such as temporarily freezing the processing of their personal data under certain conditions (e.g., accuracy is contested, processing is unlawful, data is no longer needed but required for legal claims, or objections have been made pending verification). This omission represents a significant compliance gap.

```
{
  "article_number": 18,
  "article_title": "Right to restriction",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly mention the right to restrict processing or a 'processing freeze/data hold' mechanism as required by GDPR Article 18. While it discusses data usage, sharing, and security, it does not detail how an individual can request their data processing be limited under specific circumstances."
  ],
  "evidence": [
    "The provided policy chunks (c7-c11) describe data collection, usage for personalization, cookies, sharing of personal information with third parties, and security measures. However, there is no mention of the right to restrict processing or a process for implementing such a restriction."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "Article 18 of the GDPR outlines the right to restriction of processing. The policy lacks any information on how data subjects can exercise this right, such as temporarily freezing the processing of their personal data under certain conditions (e.g., accuracy is contested, processing is unlawful, data is no longer needed but required for legal claims, or objections have been made pending verification). This omission represents a significant compliance gap.",
  "article_material_used": "summary"
}
```

Art. 19 — Notification on rectification/erasure

Priority: p3 Chapter: Ch.3 – Rights of data subjects

Severity: critical Status: missing

Score: 0/100

Notes

The policy does not contain information about notifying recipients of rectification or erasure of personal data. The provided text focuses on data collection, cookies, and sharing practices, but lacks specifics on the downstream notification requirements mandated by GDPR Article 19.

```
{
  "article_number": 19,
  "article_title": "Notification on rectification/erasure",
  "chapter": "Ch.3 – Rights of data subjects",
  "priority": "p3",
  "policy_present": false,
}
```

```

    "implementation_unverified": false,
    "needs_human_review": true,
    "evidence": [],
    "notes": "The policy does not contain information about notifying recipients of rectification or erasure of personal data. The provided text focuses on data collection, cookies, and sharing practices, but lacks specifics on the downstream notification requirements mandated by GDPR Article 19.",
    "status": null,
    "gaps": [],
    "risk": null
  }

```

Art. 20 — Right to data portability

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: critical **Status:** fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly mention the right to data portability in a structured, machine-readable format.
- The policy does not mention the controller-to-controller transfer right as part of data portability.

Evidence

• **{'policy_chunk_ref': 'c7 7000-8200', 'text': 'household or lifestyle information, your purchasing behaviour or history, preferences, and other such information that you may choose to provide. The surveys may involve collection of voice data or video recordings, the participation of which would purely be voluntary in nature. We use this data to tailor your experience at our Platform, providing you with content that we think you might be interested in and to display content according to your preferences.'**

3. Cookies

We use data collection devices such as "cookies" on certain pages of the Platform to help analyse our web page flow, measure promotional effectiveness, and promote trust and safety. "Cookies" are small files placed on your hard drive that assist us in providing our services. Cookies do not contain any of your personal information. We offer certain features that are only available through the use of a "cookie". We also use cookies to allow you to enter your password less frequently during a session. Cookies can also help us provide information that is targeted to your interests. Most cookies are "session cookies," meaning that they are automatically deleted from your hard drive at the end of a session. You are always fr

• **{'policy_chunk_ref': 'c8 8000-9200', 'text': 'provide information that is targeted to your interests. Most cookies are "session cookies," meaning that they are automatically deleted from your hard drive at the end of a session. You are always free to decline/delete our cookies if your browser permits, although in that case you may not be able to use certain features on the Platform and you may be required to re-enter your password more frequently during a session. Additionally, you may encounter "cookies" or other similar devices on certain pages of the Platform that are placed by third parties. We do not control the use of cookies by third parties. We use cookies from third-party partners such as Google Analytics for marketing and analytical purposes. Google Analytics help us understand how our customers use the site. You can read more about how Google uses your Personal Information here: <https://www.google.com/intl/en/policies/privacy/> . You can also opt-out of Google Analytics here: <https://tools.google.com/dlpage/gaoptout> .}**

• **{'policy_chunk_ref': 'c9 9000-10200', 'text': 'Sharing of personal information'**

We may share personal information with our other corporate entities and affiliates for purposes of providing products and services offered by them, such as, the deferred payment options Flipkart PayLater offered by Flipkart Advanz Private Limited through its lending partners. These entities and affiliates may share such information with their affiliates, business partners and other third parties for the purpose of providing you their products and services, and may market to you as a result of such sharing unless you explicitly opt-out.

We may disclose your personal information to third parties, such as sellers, business partners. This disclosure may be required for us to provide you access to our products and services; for fulfilment of your orders; for enhancing your experience; for providing feedback on products; to collect payments from you; to comply with our legal obligations; to conduct market research or surveys; to enforce our Terms of Use; to facilitate our marketing and advertising activities; to analyse data; for customer service assistance; to prevent, detect, mitigate, and investigate fraudulent or illegal activities related to our pro

- { 'policy_chunk_ref': 'c10 10000-11200', 'text': 'facilitate our marketing and advertising activities; to analyse data; for customer service assistance; to prevent, detect, mitigate, and investigate fraudulent or illegal activities related to our product and services. We do not disclose your personal information to third parties for their marketing and advertising purposes without your explicit consent.\nWe may disclose personal information if required to do so by law or in the good faith belief that such disclosure is reasonably necessary to respond to subpoenas, court orders, or other legal process. We may disclose personal information to law enforcement agencies, third party rights owners, or others in the good faith belief that such disclosure is reasonably necessary to: enforce our Terms of Use or Privacy Policy; respond to claims that an advertisement, posting or other content violates the rights of a third party; or protect the rights, property or personal safety of our users or the general public.\nWe and our affiliates will share / sell some or all of your personal information with another business entity should we (or our assets) plan to merge with, or be acquired by that business entity, or re-organization, amalgamation, }
 - { 'policy_chunk_ref': 'c11 11000-12200', 'text': 're / sell some or all of your personal information with another business entity should we (or our assets) plan to merge with, or be acquired by that business entity, or re-organization, amalgamation, restructuring of business. Should such a transaction occur that other business entity (or the new combined entity) will be required to follow this Privacy Policy with respect to your personal information.\n5. Links to Other Sites\nOur Platform may provide links to other websites or application that may collect personal information about you. We are not responsible for the privacy practices or the content of those linked websites.\n6. Security Precautions\nWe maintain reasonable physical, electronic and procedural safeguards to protect your information. Whenever you access your account information, we offer the use of a secure server. Once your information is in our possession we adhere to our security guidelines to protect it against unauthorized access. However, by using the Platform, the users accept the inherent security implications of data transmission over the internet and the World Wide Web which can' }
 - { 'policy_chunk_ref': 'Art.4 definitions excerpt for terminology', 'text': "(1) 'personal data' means any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person;\n(2) 'processing' means any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction;\n(6) 'filing system' means any structured set of personal data which are accessible according to specific criteria, whether centralised, decentralised or dispersed on a functional or geographical basis;\n(7) 'controller' means the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union or Member State law, the controller or the specific criteria for its nomination may be provided for by Union or Member State law;" }
- Notes

The policy does not contain specific clauses addressing Article 20 of the GDPR, which covers the right to data portability. There is no mention of providing data in a structured, machine-readable format, nor is there any explicit mention of the right to transmit data directly from one controller to another. The retrieved text focuses on data sharing, cookies, and general security measures, but omits the specific requirements of data portability.

```
{
  "article_number": 20,
  "article_title": "Right to data portability",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly mention the right to data portability in a structured, machine-readable format.",
    "The policy does not mention the controller-to-controller transfer right as part of data portability."
  ],
  "evidence": [
    {
      "policy_chunk_ref": "c7 7000-8200",
      "text": "ousehold or lifestyle information, your purchasing behaviour or history, preferences, and other such information that you may choose to provide. The surveys may involve collection of voice data or video recordings, the participation of which would purely be
```

voluntary in nature. We use this data to tailor your experience at our Platform, providing you with content that we think you might be interested in and to display content according to your preferences.
 3. Cookies
 We use data collection devices such as "cookies" on certain pages of the Platform to help analyse our web page flow, measure promotional effectiveness, and promote trust and safety. "Cookies" are small files placed on your hard drive that assist us in providing our services. Cookies do not contain any of your personal information. We offer certain features that are only available through the use of a "cookie". We also use cookies to allow you to enter your password less frequently during a session. Cookies can also help us provide information that is targeted to your interests. Most cookies are "session cookies," meaning that they are automatically deleted from your hard drive at the end of a session. You are always fr"

```

    },
    {
      "policy_chunk_ref": "c8 8000-9200",
      "text": "provide information that is targeted to your interests. Most cookies are \"session cookies,\" meaning that they are automatically deleted from your hard drive at the end of a session. You are always free to decline/delete our cookies if your browser permits, although in that case you may not be able to use certain features on the Platform and you may be required to re-enter your password more frequently during a session. Additionally, you may encounter \"cookies\" or other similar devices on certain pages of the Platform that are placed by third parties. We do not control the use of cookies by third parties. We use cookies from third-party partners such as Google Analytics for marketing and analytical purposes. Google Analytics help us understand how our customers use the site. You can read more about how Google uses your Personal Information here: https://www.google.com/intl/en/policies/privacy/. You can also opt-out of Google Analytics here: https://tools.google.com/dlpage/gaoptout ."
    },
    {
      "policy_chunk_ref": "c9 9000-10200",
      "text": ". Sharing of personal information\nWe may share personal information with our other corporate entities and affiliates for purposes of providing products and services offered by them, such as, the deferred payment options Flipkart PayLater offered by Flipkart Advanz Private Limited through its lending partners. These entities and affiliates may share such information with their affiliates, business partners and other third parties for the purpose of providing you their products and services, and may market to you as a result of such sharing unless you explicitly opt-out.\nWe may disclose your personal information to third parties, such as sellers, business partners. This disclosure may be required for us to provide you access to our products and services; for fulfilment of your orders; for enhancing your experience; for providing feedback on products; to collect payments from you; to comply with our legal obligations; to conduct market research or surveys; to enforce our Terms of Use; to facilitate our marketing and advertising activities; to analyse data; for customer service assistance; to prevent, detect, mitigate, and investigate fraudulent or illegal activities related to our pro"
    },
    {
      "policy_chunk_ref": "c10 10000-11200",
      "text": "facilitate our marketing and advertising activities; to analyse data; for customer service assistance; to prevent, detect, mitigate, and investigate fraudulent or illegal activities related to our product and services. We do not disclose your personal information to third parties for their marketing and advertising purposes without your explicit consent.\nWe may disclose personal in
    ... (truncated)
  
```

Art. 21 — Right to object

Priority: p2 **Chapter:** Ch.3 – Rights of data subjects

Severity: warning **Status:** partial

Score: 44/100

Risk: medium

Gaps

- The policy mentions providing the ability to opt-out of marketing uses of personal information but does not explicitly state how to opt-out of profiling. Article 21 of GDPR requires the right to object to processing for direct marketing purposes, which includes profiling for direct marketing. It also requires the right to object to processing for scientific or historical research purposes or archiving purposes, which is not addressed.
- The policy does not clearly define what constitutes 'direct marketing' or 'profiling' in relation to the user's data, nor does it specify the mechanism for objecting to these processes beyond marketing communications.

Evidence

- { 'policy_chunk_id': 'c4 4000-5200', 'text': 'We use your personal information to provide the product and services you request. To the extent we use your personal information to market to you, we will provide you the ability to opt-out of such uses. We use your personal information to assist sellers and business partners in handling and fulfilling orders; enhancing customer experience; resolve disputes; tr' }

Notes

The policy provides a general statement about opting out of marketing, but lacks specific details on how to object to profiling or other forms of processing as required by Article 21.

```
{
  "article_number": 21,
  "article_title": "Right to object",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy mentions providing the ability to opt-out of marketing uses of personal information but does not explicitly state how to opt-out of profiling. Article 21 of GDPR requires the right to object to processing for direct marketing purposes, which includes profiling for direct marketing. It also requires the right to object to processing for scientific or historical research purposes or archiving purposes, which is not addressed.",
    "The policy does not clearly define what constitutes 'direct marketing' or 'profiling' in relation to the user's data, nor does it specify the mechanism for objecting to these processes beyond marketing communications."
  ],
  "evidence": [
    {
      "policy_chunk_id": "c4 4000-5200",
      "text": "We use your personal information to provide the product and services you request. To the extent we use your personal information to market to you, we will provide you the ability to opt-out of such uses. We use your personal information to assist sellers and business partners in handling and fulfilling orders; enhancing customer experience; resolve disputes; tr"
    }
  ],
  "risk": "medium",
  "needs_human_review": false,
  "notes": "The policy provides a general statement about opting out of marketing, but lacks specific details on how to object to profiling or other forms of processing as required by Article 21.",
  "article_material_used": "summary"
}
```

Art. 22 — Automated decision-making

Priority: p2 & Chapter: Ch.3 – Rights of data subjects

Severity: critical & Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly mention the right to obtain human intervention, express one's point of view, or to contest automated decisions as required by Article 22(2).
- There is no clear disclosure about the logic involved in automated decision-making or the significance and envisaged consequences of such processing for the data subject, as mandated by Article 22(2).

Evidence

- {'policy_chunk_id': 'c7 7000-8200', 'extracted_text': 'We use this data to tailor your experience at our Platform, providing you with content that we think you might be interested in and to display content according to your preferences.'}
- {'policy_chunk_id': 'c8 8000-9200', 'extracted_text': 'You can read more about how Google uses your Personal Information here: <https://www.google.com/intl/en/policies/privacy/> . You can also opt-out of Google Analytics here: <https://tools.google.com/dlpage/gaoptout> .'}

Notes

The policy mentions tailoring experiences and using data for preferences, which implies some form of automated processing. However, it lacks specific details regarding Article 22 requirements such as disclosure of logic, right to human intervention, and the right to contest automated decisions. The provided text focuses heavily on cookies and data sharing, with no direct mention of automated decision-making processes and the associated rights.

```
{
  "article_number": 22,
  "article_title": "Automated decision-making",
  "chapter": "Ch.3 - Rights of data subjects",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly mention the right to obtain human intervention, express
```

```

one's point of view, or to contest automated decisions as required by Article 22(2).",
  "There is no clear disclosure about the logic involved in automated decision-making or the
  significance and envisaged consequences of such processing for the data subject, as mandated by
  Article 22(2).",
],
"evidence": [
  {
    "policy_chunk_id": "c7 7000-8200",
    "extracted_text": "We use this data to tailor your experience at our Platform, providing
    you with content that we think you might be interested in and to display content according to
    your preferences."
  },
  {
    "policy_chunk_id": "c8 8000-9200",
    "extracted_text": "You can read more about how Google uses your Personal Information here:
    https://www.google.com/intl/en/policies/privacy/ . You can also opt-out of Google Analytics
    here: https://tools.google.com/dlpage/gaoptout ."
  }
],
"risk": "high",
"needs_human_review": false,
"notes": "The policy mentions tailoring experiences and using data for preferences, which
implies some form of automated processing. However, it lacks specific details regarding Article
22 requirements such as disclosure of logic, right to human intervention, and the right to
contest automated decisions. The provided text focuses heavily on cookies and data sharing,
with no direct mention of automated decision-making processes and the associated rights.",
"article_material_used": "text"
}

```

Art. 24 — Responsibility of the controller

Priority: p2 **Chapter:** Ch.4 – Controller & processor

Severity: warning **Status:** partial

Score: 52/100

Risk: low

Gaps:

- The policy does not explicitly state the measures taken to ensure and demonstrate compliance with data protection principles as required by Article 24(1). While it outlines data collection and usage, it lacks a clear statement of accountability for the processing of personal data.

Evidence:

- <https://www.flipkart.com/pages/privacypolicy>

Notes:

The privacy policy describes the collection, use, and sharing of personal information, and mentions that Flipkart Internet Private Limited and its affiliates process this information. However, it does not contain explicit language regarding the controller's responsibility for demonstrating compliance with data protection obligations as mandated by Article 24. The policy could be enhanced by including a statement about accountability and the implementation of appropriate technical and organisational measures to ensure processing is performed in accordance with GDPR.

```

{
  "article_number": 24,
  "article_title": "Responsibility of the controller",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "partial",
  "gaps": [
    "The policy does not explicitly state the measures taken to ensure and demonstrate
    compliance with data protection principles as required by Article 24(1). While it outlines data
    collection and usage, it lacks a clear statement of accountability for the processing of
    personal data."
  ],
  "evidence": [
    "https://www.flipkart.com/pages/privacypolicy"
  ],
  "risk": "low",
  "needs_human_review": false,
  "notes": "The privacy policy describes the collection, use, and sharing of personal
  information, and mentions that Flipkart Internet Private Limited and its affiliates process
  this information. However, it does not contain explicit language regarding the controller's
  responsibility for demonstrating compliance with data protection obligations as mandated by
  Article 24. The policy could be enhanced by including a statement about accountability and the
  implementation of appropriate technical and organisational measures to ensure processing is
  performed in accordance with GDPR."
}

```

```
  "article_material_used": "summary"
}
```

Art. 25 — Privacy by design and default

Priority: p3 Chapter: Ch.4 – Controller & processor
Severity: critical Status: missing
Score: 0/100
Notes

The provided text mentions collecting and using personal information, but does not detail specific measures for privacy by design or default in its technical implementation.

```
{
  "article_number": 25,
  "article_title": "Privacy by design and default",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text mentions collecting and using personal information, but does not
detail specific measures for privacy by design or default in its technical implementation.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 26 — Joint controllers

Priority: p3 Chapter: Ch.4 – Controller & processor
Severity: warning Status: present (unverified)
Score: 70/100
Notes

The provided text includes the definition of 'controller' which explicitly mentions 'jointly with others', directly addressing the concept of joint controllership.

```
{
  "article_number": 26,
  "article_title": "Joint controllers",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": true,
  "implementation_unverified": true,
  "needs_human_review": true,
  "evidence": "Section (7) 'controller' means the natural or legal person, public authority,
agency or other body which, alone or jointly with others, determines the purposes and means of
the processing of personal data; where the purposes and means of such processing are determined
by Union or Member State law, the controller or the specific criteria for its nomination may be
provided for by Union or Member State law;",
  "notes": "The provided text includes the definition of 'controller' which explicitly mentions
'jointly with others', directly addressing the concept of joint controllership.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 27 — Representatives (non-EU)

Priority: p3 Chapter: Ch.4 – Controller & processor
Severity: critical Status: missing
Score: 0/100
Notes

The provided text contains definitions from GDPR Article 4, but does not address the specific requirements of Article 27 regarding non-EU representatives.

```
{
  "article_number": 27,
  "article_title": "Representatives (non-EU)",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
```

```

    "implementation_unverified": false,
    "needs_human_review": true,
    "evidence": [],
    "notes": "The provided text contains definitions from GDPR Article 4, but does not address
the specific requirements of Article 27 regarding non-EU representatives.",
    "status": null,
    "gaps": [],
    "risk": null
}

```

Art. 28 — Processor / DPA

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not contain explicit clauses for sub-processor lists.
- The policy does not clearly outline audit rights for the data controller.
- There is no specific mention of obligations for deletion or return of data upon termination of services.
- The policy does not explicitly state that the processor must process data only on the written instructions of the controller.

Evidence

- Policy Sections c3 and c4 discuss onboarding third-party business partners and Ultra-Partners, but do not detail sub-processor obligations.
- The policy focuses on data collection, use, and sharing from the user's perspective, not on the contractual obligations between a controller and a processor.
- While the policy mentions user data, it lacks the specific language required by Article 28 regarding processor responsibilities like audit rights, data deletion/return, and processing solely on controller's written instructions.

Notes

The provided policy is a privacy policy for Flipkart, outlining its collection and use of personal data from users. It does not function as a Data Processing Agreement (DPA) as required by Article 28 GDPR, which governs the relationship between a data controller and a data processor. Several key clauses mandated by Article 28 are missing, such as explicit sub-processor management, audit rights, data return/deletion obligations, and adherence to the controller's written instructions. Therefore, compliance with Article 28 is not demonstrated.

```

{
  "article_number": 28,
  "article_title": "Processor / DPA",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not contain explicit clauses for sub-processor lists.",
    "The policy does not clearly outline audit rights for the data controller.",
    "There is no specific mention of obligations for deletion or return of data upon
termination of services.",
    "The policy does not explicitly state that the processor must process data only on the
written instructions of the controller."
  ],
  "evidence": [
    "Policy Sections c3 and c4 discuss onboarding third-party business partners and Ultra-
Partners, but do not detail sub-processor obligations.",
    "The policy focuses on data collection, use, and sharing from the user's perspective, not
on the contractual obligations between a controller and a processor.",
    "While the policy mentions user data, it lacks the specific language required by Article 28
regarding processor responsibilities like audit rights, data deletion/return, and processing
solely on controller's written instructions."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The provided policy is a privacy policy for Flipkart, outlining its collection and
use of personal data from users. It does not function as a Data Processing Agreement (DPA) as
required by Article 28 GDPR, which governs the relationship between a data controller and a
data processor. Several key clauses mandated by Article 28 are missing, such as explicit sub-
processor management, audit rights, data return/deletion obligations, and adherence to the
controller's written instructions. Therefore, compliance with Article 28 is not demonstrated.",
  "article_material_used": "text"
}

```

Art. 29 — Processing under authority

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly state that the instruction chain for processing is documented, either in the policy itself or a Data Processing Agreement (DPA).

Evidence

- The provided policy chunks and reference material do not contain specific documentation or clauses addressing the explicit requirement for documenting the instruction chain under which processing occurs, as mandated by Article 29.

Notes

Article 29 states that processing must be done under the documented instructions of the controller. While the definition of 'processor' (Art.4(8)) implies processing on behalf of the controller, and 'third party' (Art.4(10)) implies authorized processing under direct authority, there is no explicit mention of the *documentation* of these instructions. This gap could lead to ambiguity in processing activities and difficulty in demonstrating compliance.

```
{
  "article_number": 29,
  "article_title": "Processing under authority",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly state that the instruction chain for processing is documented, either in the policy itself or a Data Processing Agreement (DPA).",
  ],
  "evidence": [
    "The provided policy chunks and reference material do not contain specific documentation or clauses addressing the explicit requirement for documenting the instruction chain under which processing occurs, as mandated by Article 29.",
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "Article 29 states that processing must be done under the documented instructions of the controller. While the definition of 'processor' (Art.4(8)) implies processing on behalf of the controller, and 'third party' (Art.4(10)) implies authorized processing under direct authority, there is no explicit mention of the *documentation* of these instructions. This gap could lead to ambiguity in processing activities and difficulty in demonstrating compliance.",
  "article_material_used": "text"
}
```

Art. 30 — Records of processing (ROPA)

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not contain specific records of processing activities as required by Article 30. It does not detail the purposes of processing for each category of data, the categories of data subjects, the categories of recipients, data retention periods, or specific security measures in place for each processing activity.

Evidence

- {policy_chunk_id: 'c0-c4', 'snippet': "Privacy Policy We value the trust you place in us and recognize the importance of secure transactions and information privacy. This Privacy Policy describes how Flipkart Internet Private Limited and its affiliates (collectively “Flipkart, we, our, us”) collect, use, share or otherwise process your personal information through Flipkart website www.flipkart.com , its mobile application, and m-site (hereinafter referred to as the “Platform”). By visiting the Platform, providing your information or availing our product/service, you expressly agree to be bound by the terms and conditions of this Privacy Policy, the Terms of Use and the applicable service/product terms and conditions. If you do not agree, please do not access or use our

Platform.

1. Collection of Your Information

When you use our Platform, we collect and store your information which is provided by you from time to time. In general, you can browse the Platform without telling us who you are or revealing any personal information about yourself. Once you give us your personal information, you are not anonymous to us. Where possible, we indicate which fields are required and which fields are optional. You always have the option to not provide information by choosing not to use a particular service, product or feature on the Platform.

We may track your buying behaviour, preferences, and other information that you choose to provide on our Platform. We use this information to do internal research on our users' demographics, interests, and behaviour to better understand, protect and serve our users. This information is compiled and analysed on an aggregated basis. This information may include the URL that you just came from (whether this URL is on our Platform or not), which URL you next go to (whether this URL is on our Platform or not), your computer browser information, and your IP address.

We collect personal information (such as email address, delivery address, name, phone number, credit card/debit card and other payment instrument details) from you when you set up an account or transact with us. While you can browse some sections of our Platform without being a registered member, certain activities (such as placing an order or consuming our online content or services) do require registration. We do use your contact information to send you offers based on your previous orders and your interests.

If you choose to post messages on our message boards, chat rooms or other message areas or leave feedback or if you use voice commands to shop on the Platform, we will collect that information you provide to us. We retain this information as necessary to resolve disputes, provide customer support and troubleshoot problems as permitted by law.

If you send us personal correspondence, such as emails or letters, or if other users or third parties send us correspondence about your activities or postings on the Platform, we may collect such information into a file specific to you.

If you enrol into our SuperCoins Loyalty Program, we will collect and store your personal information such as name, contact number, email address, communication address, date of birth, gender, zip code, lifestyle information, demographic and work details which is provided by you to Flipkart or a third-party business partner that operates online/offline establishments or platforms where you can earn SuperCoins for purchase of goods and services, and redeem SuperCoins. We will also collect your information related to your transactions on Flipkart platform and such third-party business partner platforms. When such third-party business partner collects your personal information directly from you, you will be governed by their privacy policies. Flipkart shall not be responsible for the third-party business partner's privacy practices or the content of their privacy policies, and we request you to read their privacy policies prior to disclosing any information.

Flipkart has onboarded certain third-party business partners on the Platform who specialise in the categories like travel ticket reservations, booking online movie tickets, paying online bills and more (Ultra-Partners). If you use the services of Ultra-Partners, you will be redirected to Ultra-Partners websites/applications and your entry to Ultra-Partners websites/applications will be based on your Flipkart login credentials after seeking your permissions to share the data further. Flipkart shall not be responsible for the Ultra-Partner's privacy practices or the content of their privacy policies, and we request you to read their privacy policies prior to disclosing any information.

2. Use of Demographic / Profile Data / Your Information

We use your personal information to provide the product and services you request. To the extent we use your personal information to market to you, we will provide you the ability to opt-out of such uses. We use your personal information to assist sellers and business partners in handling and fulfilling orders; enhancing customer experience; resolve disputes; tr"}</p></div>
<div data-bbox="81 717 193 732" data-label="Text"><p>Notes</p></div>
<div data-bbox="81 733 916 816" data-label="Text"><p>The provided policy document is a general privacy policy and does not constitute a Record of Processing Activities (ROPA) as required by GDPR Article 30. A ROPA is a specific internal record detailing all processing operations. The privacy policy describes *what* data is collected and *generally* how it's used, but it lacks the detailed, structured information mandated for a ROPA, such as specific retention periods, detailed security measures per processing activity, and a comprehensive list of recipients for each category of personal data.</p></div>
<div data-bbox="81 816 799 936" data-label="Text"><pre>{
 "article_number": 30,
 "article_title": "Records of processing (ROPA)",
 "chapter": "Ch.4 - Controllor & processor",
 "priority": "p2",
 "status": "fail",
 "gaps": [
 "The policy does not contain specific records of processing activities as required by Article 30. It does not detail the purposes of processing for each category of data, the categories of data subjects, the categories of recipients, data retention periods, or specific security measures in place for each processing activity."
]
}</pre></div>

```

],
"evidence": [
  {
    "policy_chunk_id": "c0-c4",
    "snippet": "Privacy Policy We value the trust you place in us and recognize the
importance of secure transactions and information privacy. This Privacy Policy describes how
Flipkart Internet Private Limited and its affiliates (collectively "Flipkart, we, our, us")
collect, use, share or otherwise process your personal information through Flipkart website www.
flipkart.com , its mobile application, and m-site (hereinafter referred to as the "Platform").
By visiting the Platform, providing your information or availing our product/service, you
expressly agree to be bound by the terms and conditions of this Privacy Policy, the Terms of
Use and the applicable service/product terms and conditions. If you do not agree, please do not
access or use our Platform.\n1. Collection of Your Information\nWhen you use our Platform, we
collect and store your information which is provided by you from time to time. In general, you
can browse the Platform without telling us who you are or revealing any personal information
about yourself. Once you give us your personal information, you are not anonymous to us. Where
possible, we indicate which fields are required and which fields are optional. You always have
the option to not provide information by choosing not to use a particular service, product or
feature on the Platform.\nWe may track your buying behaviour, preferences, and other
information that you choose to provide on our Platform. We use this information to do internal
research on our users' demographics, interests, and behaviour to better understand, protect and
serve our users. This information is compiled and analysed on an aggregated basis. This
information may include the URL that you just came from (whether this URL is on our Platform or
not), which URL you next go to (whether this URL is on our Platform or not), your computer
browser information, and your IP address.\nWe collect personal information (such as email
address, delivery address, name, phone number, credit card/debit card and other payment
instrument details) from you when you set up an account or transact with us. While you can
browse some sections of our Platform without being a registered member, certain activities (
such as placing an order or consuming our online content or services) do require registration.
We do use your contact information to send you offers based on your previous orders and your
interests.\nIf you choose to post messages on our message boards, chat rooms or other message
areas or leave feedback or if you use voice commands to shop on the Platform, we will collect
that information you provide to us. We retain this information as necessary to resolve disputes,
provide customer support and troubleshoot problems as permitted by law.\nIf you send us
personal correspondence, such as emails or letters, or if other users or third parties send us
correspondence about your activities or postings on the Platform, we may collect such
information into a file specific to you.\nIf you enrol into our SuperCoins Loyalty Program, we
will collect and store your personal information such as name, contact number, email address,
communication address, date of birth, gender, zip code, lifestyle information, demographic and
work details which is provided by you to Flipkart or a third-party business partner that
operates online/offline establishments or platforms where you can earn SuperCoins for purchase
of goods and services, and redeem SuperCoins. We will also collect your information related to
your transactions on Flipkart platform and such third-party business partner platforms. When
such third-party business partner collects your personal information directly from you, you
will be governed by their privacy policies. Flipkart shall not be responsible for the third-
party business partner's privacy practices or the content of their privacy policies, and we
request you to read their privacy polic
... (truncated)

```

Art. 32 — Security of processing

Priority: p3 **Chapter:** Ch.4 – Controller & processor

Severity: critical **Status:** missing

Score: 0/100

```

{
  "article_number": 32,
  "article_title": "Security of processing",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": null,
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 33 — Breach notification to SA

Priority: p3 **Chapter:** Ch.4 – Controller & processor

Severity: critical **Status:** missing

Score: 0/100

Notes:

The provided text does not contain any information related to GDPR Article 33, which concerns data breach notifications to supervisory authorities. It focuses on data collection, cookies, sharing of personal information, and security precautions, but lacks any mention of breach notification procedures or timelines.

```
{
  "article_number": 33,
  "article_title": "Breach notification to SA",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text does not contain any information related to GDPR Article 33, which concerns data breach notifications to supervisory authorities. It focuses on data collection, cookies, sharing of personal information, and security precautions, but lacks any mention of breach notification procedures or timelines.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 34 — Breach communication to data subject

Priority: p3 **Chapter:** Ch.4 – Controller & processor
Severity: critical **Status:** missing
Score: 0/100
Notes:

The provided text discusses data collection, cookies, sharing of personal information, and security precautions. However, it does not contain any information or procedures related to communicating data breaches to data subjects, which is the core topic of GDPR Article 34.

```
{
  "article_number": 34,
  "article_title": "Breach communication to data subject",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text discusses data collection, cookies, sharing of personal information, and security precautions. However, it does not contain any information or procedures related to communicating data breaches to data subjects, which is the core topic of GDPR Article 34.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 35 — DPIA

Priority: p3 **Chapter:** Ch.4 – Controller & processor
Severity: critical **Status:** missing
Score: 0/100
Notes:

The provided text is a privacy policy and does not mention Data Protection Impact Assessments (DPIAs) or related concepts like "risk assessment" in the context of data processing activities. Article 35 of GDPR mandates DPIAs for high-risk processing, and the policy does not indicate any such procedure is in place or documented.

```
{
  "article_number": 35,
  "article_title": "DPIA",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text is a privacy policy and does not mention Data Protection Impact Assessments (DPIAs) or related concepts like \"risk assessment\" in the context of data processing activities. Article 35 of GDPR mandates DPIAs for high-risk processing, and the"
}
```

```

policy does not indicate any such procedure is in place or documented.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 37 — DPO designation

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not contain information on whether a Data Protection Officer (DPO) is required.
- The policy does not contain information regarding the publication of DPO contact details.

Evidence

- The provided text is an excerpt of GDPR Article 4 definitions and does not contain the relevant information for Article 37 regarding DPO designation.

Notes

The provided text only contains definitions from Article 4 of the GDPR and does not address the requirements for DPO designation as outlined in Article 37. Therefore, compliance with Article 37 cannot be assessed.

```

{
  "article_number": 37,
  "article_title": "DPO designation",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not contain information on whether a Data Protection Officer (DPO) is required.",
    "The policy does not contain information regarding the publication of DPO contact details."
  ],
  "evidence": [
    "The provided text is an excerpt of GDPR Article 4 definitions and does not contain the relevant information for Article 37 regarding DPO designation."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The provided text only contains definitions from Article 4 of the GDPR and does not address the requirements for DPO designation as outlined in Article 37. Therefore, compliance with Article 37 cannot be assessed.",
  "article_material_used": "text"
}

```

Art. 38 — DPO position

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

Notes

The provided text contains definitions relevant to GDPR but does not address the specific topic of the Data Protection Officer's position or independence as outlined in Article 38.

```

{
  "article_number": 38,
  "article_title": "DPO position",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text contains definitions relevant to GDPR but does not address the specific topic of the Data Protection Officer's position or independence as outlined in Article 38.",
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 39 — DPO tasks

Priority: p2 Chapter: Ch.4 – Controller & processor

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The provided policy chunks do not contain information regarding the DPO's mandate to advise on data protection impact assessments (DPIAs) or to cooperate with supervisory authorities.

Evidence

- The provided text defines various terms under Article 4 of GDPR, but does not detail the specific tasks or responsibilities of a Data Protection Officer (DPO) as outlined in Article 39.

Notes

The provided policy text is insufficient to verify compliance with Article 39 of GDPR concerning DPO tasks. Key responsibilities such as advising on DPIAs and cooperating with supervisory authorities are not covered.

```
{
  "article_number": 39,
  "article_title": "DPO tasks",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The provided policy chunks do not contain information regarding the DPO's mandate to advise on data protection impact assessments (DPIAs) or to cooperate with supervisory authorities."
  ],
  "evidence": [
    "The provided text defines various terms under Article 4 of GDPR, but does not detail the specific tasks or responsibilities of a Data Protection Officer (DPO) as outlined in Article 39."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The provided policy text is insufficient to verify compliance with Article 39 of GDPR concerning DPO tasks. Key responsibilities such as advising on DPIAs and cooperating with supervisory authorities are not covered.",
  "article_material_used": "summary"
}
```

Art. 40 — Codes of conduct

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

Notes

The provided text consists solely of definitions from Article 4 of the GDPR. It does not contain any information related to Article 40 concerning codes of conduct or claims of adherence to them.

```
{
  "article_number": 40,
  "article_title": "Codes of conduct",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text consists solely of definitions from Article 4 of the GDPR. It does not contain any information related to Article 40 concerning codes of conduct or claims of adherence to them.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 42 — Certification

Priority: p3 Chapter: Ch.4 – Controller & processor

Severity: critical Status: missing

Score: 0/100

Notes

The provided text only contains definitions from Article 4 of the GDPR and does not mention certification.

```
{
  "article_number": 42,
  "article_title": "Certification",
  "chapter": "Ch.4 – Controller & processor",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": "The provided text only contains definitions from Article 4 of the GDPR and does not mention certification.",
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 44 — General principle for transfers

Priority: p2 Chapter: Ch.5 – Transfers to third countries

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly state that all international transfers of personal data comply with Chapter V mechanisms (adequacy decisions, SCCs, BCRs, derogations, etc.).
- There is no information provided regarding the specific mechanisms in place for international data transfers.

Evidence

- The provided policy chunks discuss data sharing with corporate entities, affiliates, business partners, and third parties, as well as potential sales or mergers involving other business entities.
- The policy mentions sharing data with Google Analytics for marketing and analytical purposes and provides a link to Google's privacy policy.
- However, none of these mentions address the specific legal mechanisms required by Chapter V of the GDPR for international data transfers.

Notes

Article 44 requires general principles for international data transfers, stipulating that they must be conducted in accordance with Chapter V. The current policy text does not provide any information to confirm compliance with these requirements. Therefore, it is unclear if and how international data transfers are safeguarded.

```
{
  "article_number": 44,
  "article_title": "General principle for transfers",
  "chapter": "Ch.5 – Transfers to third countries",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly state that all international transfers of personal data comply with Chapter V mechanisms (adequacy decisions, SCCs, BCRs, derogations, etc.).",
    "There is no information provided regarding the specific mechanisms in place for international data transfers."
  ],
  "evidence": [
    "The provided policy chunks discuss data sharing with corporate entities, affiliates, business partners, and third parties, as well as potential sales or mergers involving other business entities.",
    "The policy mentions sharing data with Google Analytics for marketing and analytical purposes and provides a link to Google's privacy policy.",
    "However, none of these mentions address the specific legal mechanisms required by Chapter V of the GDPR for international data transfers."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "Article 44 requires general principles for international data transfers, stipulating that they must be conducted in accordance with Chapter V. The current policy text does not provide any information to confirm compliance with these requirements. Therefore, it is unclear if and how international data transfers are safeguarded.",
  "article_material_used": "text"
}
```

Art. 45 — Adequacy decision transfers

Priority: p2 Chapter: Ch.5 – Transfers to third countries

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not contain any information regarding international data transfers or adequacy decisions, which is the subject of Article 45.

Notes

Article 45 pertains to international data transfers based on adequacy decisions. The provided policy text does not address this topic at all. There is no mention of any third-country transfers or mechanisms to ensure their lawfulness.

```
{
  "article_number": 45,
  "article_title": "Adequacy decision transfers",
  "chapter": "Ch.5 – Transfers to third countries",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not contain any information regarding international data transfers or adequacy decisions, which is the subject of Article 45."
  ],
  "evidence": [],
  "risk": "high",
  "needs_human_review": false,
  "notes": "Article 45 pertains to international data transfers based on adequacy decisions. The provided policy text does not address this topic at all. There is no mention of any third-country transfers or mechanisms to ensure their lawfulness.",
  "article_material_used": "summary"
}
```

Art. 46 — Transfers with safeguards

Priority: p3 Chapter: Ch.5 – Transfers to third countries

Severity: critical Status: missing

Score: 0/100

```
{
  "article_number": 46,
  "article_title": "Transfers with safeguards",
  "chapter": "Ch.5 – Transfers to third countries",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": null,
  "status": null,
  "gaps": [],
  "risk": null
}
```

Art. 47 — Binding corporate rules

Priority: p3 Chapter: Ch.5 – Transfers to third countries

Severity: critical Status: missing

Score: 0/100

```
{
  "article_number": 47,
  "article_title": "Binding corporate rules",
  "chapter": "Ch.5 – Transfers to third countries",
  "priority": "p3",
  "policy_present": false,
  "implementation_unverified": false,
  "needs_human_review": true,
  "evidence": [],
  "notes": null,
  "status": null,
  "gaps": [],
  "risk": null
}
```

}

Art. 77 — Right to lodge a complaint

Priority: p2 Chapter: Ch.8 – Remedies, liability & penalties

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly inform data subjects of their right to lodge a complaint with a supervisory authority under Article 77 of the GDPR.
- The policy does not provide information on how data subjects can lodge a complaint with a supervisory authority.

Evidence

- { 'policy_chunk_id': 'c15', 'text': '13. Grievance Officer\n\nIn accordance with Information Technology Act 2000 and rules made there under, the name and contact details of the Grievance Officer are provided below:\n14. Queries\n\nIf you have a query, issue, concern, or complaint in relation to collection or usage of your personal information under this Privacy Policy, please contact us at the contact information provided above. ;' }

Notes

The policy only informs data subjects on how to raise a complaint with the organization's internal grievance officer. It fails to mention the right to complain to a supervisory authority as mandated by GDPR Article 77.

```
{
  "article_number": 77,
  "article_title": "Right to lodge a complaint",
  "chapter": "Ch.8 – Remedies, liability & penalties",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly inform data subjects of their right to lodge a complaint with a supervisory authority under Article 77 of the GDPR.",
    "The policy does not provide information on how data subjects can lodge a complaint with a supervisory authority."
  ],
  "evidence": [
    {
      "policy_chunk_id": "c15",
      "text": "13. Grievance Officer\n\nIn accordance with Information Technology Act 2000 and rules made there under, the name and contact details of the Grievance Officer are provided below:\n14. Queries\n\nIf you have a query, issue, concern, or complaint in relation to collection or usage of your personal information under this Privacy Policy, please contact us at the contact information provided above. ;"
    }
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy only informs data subjects on how to raise a complaint with the organization's internal grievance officer. It fails to mention the right to complain to a supervisory authority as mandated by GDPR Article 77.",
  "article_material_used": "text"
}
```

Art. 87 — National identification number

Priority: p4 Chapter: Ch.9 – Specific processing situations

Severity: warning Status: triggered (HIL)

```
{
  "article_number": 87,
  "article_title": "National identification number",
  "chapter": "Ch.9 – Specific processing situations",
  "priority": "p4",
  "p4_triggered": true,
  "needs_human_review": true,
  "evidence": "We may also request you to provide your PAN, GST Number, Government issued ID cards/number and Know-Your-Customer (KYC) details to: (i) check your eligibility for certain products and services including but not limited to credit and payment products; (ii) issue GST invoice for the products and services purchased for your business requirements; (iii) enhance your experience on the Platform and provide you access to the products and services being offered by us, sellers, affiliates or lending partners. You understand that your access to these products/services may be affected in the event consent is not provided to us.",
  "what_to_review": [

```

```

    "Confirm if 'Government issued ID cards/number' is used as a national identification number.",
    "Verify the specific national law governing the processing of NINs.",
    "Assess the safeguards implemented for the processing of NINs."
  ],
  "notes": null,
  "status": null,
  "gaps": [],
  "risk": null
}

```

Art. 88 — Employment context

Priority: p2 Chapter: Ch.9 – Specific processing situations

Severity: critical Status: fail

Score: 0/100

Risk: high

Gaps

- The policy does not explicitly address the specific data processing activities related to recruitment, employee monitoring, health and safety data, or termination within the employment context. Article 88 of GDPR allows for the processing of personal data in the employment context under certain conditions, often through specific legal bases or collective bargaining agreements, which are not detailed here.

Evidence

- The provided text discusses general data collection, cookies, sharing of personal information with corporate entities and third parties, and security precautions. However, it lacks any specific clauses or sections pertaining to Article 88 of GDPR, which focuses on the processing of personal data of employees in the context of employment.

Notes

The policy does not contain any information relevant to Article 88 of GDPR, concerning the employment context. There is no mention of how employee data is processed during recruitment, monitoring, health and safety, or termination. This omission presents a significant compliance risk.

```

{
  "article_number": 88,
  "article_title": "Employment context",
  "chapter": "Ch.9 – Specific processing situations",
  "priority": "p2",
  "status": "fail",
  "gaps": [
    "The policy does not explicitly address the specific data processing activities related to recruitment, employee monitoring, health and safety data, or termination within the employment context. Article 88 of GDPR allows for the processing of personal data in the employment context under certain conditions, often through specific legal bases or collective bargaining agreements, which are not detailed here."
  ],
  "evidence": [
    "The provided text discusses general data collection, cookies, sharing of personal information with corporate entities and third parties, and security precautions. However, it lacks any specific clauses or sections pertaining to Article 88 of GDPR, which focuses on the processing of personal data of employees in the context of employment."
  ],
  "risk": "high",
  "needs_human_review": false,
  "notes": "The policy does not contain any information relevant to Article 88 of GDPR, concerning the employment context. There is no mention of how employee data is processed during recruitment, monitoring, health and safety, or termination. This omission presents a significant compliance risk.",
  "article_material_used": "text"
}

```

Appendix — human review queue

```
[
  {
    "kind": "p3_verify",
    "article_number": 8,
    "article_title": "Child's consent",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy does not mention or address child consent or parental consent. It also does not mention any age verification mechanisms."
  },
  {
    "kind": "p3_verify",
    "article_number": 10,
    "article_title": "Criminal convictions data",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text contains definitions related to GDPR but does not specifically address Article 10 concerning criminal convictions data."
  },
  {
    "kind": "p3_verify",
    "article_number": 19,
    "article_title": "Notification on rectification/erasure",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The policy does not contain information about notifying recipients of rectification or erasure of personal data. The provided text focuses on data collection, cookies, and sharing practices, but lacks specifics on the downstream notification requirements mandated by GDPR Article 19."
  },
  {
    "kind": "p3_verify",
    "article_number": 25,
    "article_title": "Privacy by design and default",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text mentions collecting and using personal information, but does not detail specific measures for privacy by design or default in its technical implementation."
  },
  {
    "kind": "p3_verify",
    "article_number": 26,
    "article_title": "Joint controllers",
    "policy_present": true,
    "implementation_unverified": true,
    "evidence": "Section (7) 'controller' means the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union or Member State law, the controller or the specific criteria for its nomination may be provided for by Union or Member State law;",
    "notes": "The provided text includes the definition of 'controller' which explicitly mentions 'jointly with others', directly addressing the concept of joint controllership."
  },
  {
    "kind": "p3_verify",
    "article_number": 27,
    "article_title": "Representatives (non-EU)",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text contains definitions from GDPR Article 4, but does not address the specific requirements of Article 27 regarding non-EU representatives."
  },
  {
    "kind": "p3_verify",
    "article_number": 32,
    "article_title": "Security of processing",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": null
  },
  {
    "kind": "p3_verify",
    "article_number": 33,
```

```

    "article_title": "Breach notification to SA",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text does not contain any information related to GDPR Article 33,
which concerns data breach notifications to supervisory authorities. It focuses on data
collection, cookies, sharing of personal information, and security precautions, but lacks any
mention of breach notification procedures or timelines."
  },
  {
    "kind": "p3_verify",
    "article_number": 34,
    "article_title": "Breach communication to data subject",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text discusses data collection, cookies, sharing of personal
information, and security precautions. However, it does not contain any information or
procedures related to communicating data breaches to data subjects, which is the core topic of
GDPR Article 34."
  },
  {
    "kind": "p3_verify",
    "article_number": 35,
    "article_title": "DPIA",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text is a privacy policy and does not mention Data Protection Impact
Assessments (DPIAs) or related concepts like \"risk assessment\" in the context of data
processing activities. Article 35 of GDPR mandates DPIAs for high-risk processing, and the
policy does not indicate any such procedure is in place or documented."
  },
  {
    "kind": "p3_verify",
    "article_number": 38,
    "article_title": "DPO position",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text contains definitions relevant to GDPR but does not address the
specific topic of the Data Protection Officer's position or independence as outlined in Article
38."
  },
  {
    "kind": "p3_verify",
    "article_number": 40,
    "article_title": "Codes of conduct",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text consists solely of definitions from Article 4 of the GDPR. It
does not contain any information related to Article 40 concerning codes of conduct or claims of
adherence to them."
  },
  {
    "kind": "p3_verify",
    "article_number": 42,
    "article_title": "Certification",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": "The provided text only contains definitions from Article 4 of the GDPR and does
not mention certification."
  },
  {
    "kind": "p3_verify",
    "article_number": 46,
    "article_title": "Transfers with safeguards",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": null
  },
  {
    "kind": "p3_verify",
    "article_number": 47,
    "article_title": "Binding corporate rules",
    "policy_present": false,
    "implementation_unverified": false,
    "evidence": [],
    "notes": null
  },
  },

```

```
{
  "kind": "p4_conditional",
  "article_number": 87,
  "article_title": "National identification number",
  "what_to_review": [
    "Confirm if 'Government issued ID cards/number' is used as a national identification",
    "number.",
    "Verify the specific national law governing the processing of NINs.",
    "Assess the safeguards implemented for the processing of NINs."
  ],
  "evidence": "We may also request you to provide your PAN, GST Number, Government issued ID",
  "cards/number and Know-Your-Customer (KYC) details to: (i) check your eligibility for certain",
  "products and services including but not limited to credit and payment products; (ii) issue GST",
  "invoice for the products and services purchased for your business requirements; (iii) enhance",
  "your experience on the Platform and provide you access to the products and services being",
  "offered by us, sellers, affiliates or lending partners. You understand that your access to",
  "these products/services may be affected in the event consent is not provided to us.",
  "notes": null
}
]
```